Higher National Diploma in Quantity Surveying
Second Year, Second Semester Examination – 2020
QS 22032 Contract Law II

Instructions for Candidates:
Answer four questions only

No. of questions: 05
No. of pages : 02
Time : 02 hours

Question 01

i. Name five jurisdictions of the District Court. (05 Marks)

ii. Mention five sources of law. (05 Marks)

iii. Define the term misrepresentation under contract law. (05 Marks)

iv. State the requirements to fulfil the postal rule. (05 Marks)

v. Mention five types of invitation to treat. (05 Marks)

(Total= 25 Marks)

Question 02

i. State five essential requirements of a valid contract. (05 Marks)

ii. Briefly explain two remedies for breach of contract. (05 Marks)

iii. Distinguish contract of service from contract for service. (05 Marks)

iv. What is meant by acceptance? (05 Marks)

v. Explain the legal concept discussed by the case of Hyde vs. Wrench. (05 Marks)

(Total=25 Marks)

Question 03

i. State five types of employment. (05 Marks)

ii. Mrs. Kushani works as a Management Assistant in Perera Construction Ltd, delivered her third baby. She seeks advice regarding the maternity leave. (05 Marks)

iii. Discuss two dispute settling methods under the Industrial Disputes Act. (05 Marks)

iv. Explain the term 'probationary period'. (05 Marks)

v. Identify the sector of each employee given below and state the laws applicable to each of the following worker/employee. (05 Marks)

   a. Raja who worked for 10 days as a helper in the 'Pitigala Tea State'.

   b. Saduni who works as a consultant in the Department of Agriculture.

(Total=25 Marks)

Question 04

i. What is meant by Invitation for Bids. (05 Marks)

ii. Discuss the duties and responsibilities of the Quantity Surveyor. (05 Marks)

iii. Explain the term "Percentage Rate Contract". (05 Marks)

iv. What are the advantages of Lump Sum Contract. (05 Marks)

v. Briefly explain the objectives of Procurement process. (05 Marks)

(Total=25 Marks)

Question 05

i. Write short notes of following topics. **(5x05=25 Marks)**

   a. FIDIC

   b. Turnkey Contract

   c. Two envelope system

   d. Project Life Cycle

   e. Standard Bidding Document